

**TENTATIVE RULING FOR CIVSB2406630**  
**Department S24 - Judge Carlos M. Cabrera**

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Padilla v. 2A&A Transport, et al

Motion: Determination of Good Faith Settlement

Movant: Jose Hernandez Cruz (Defendant/Cross-Defendant/Cross-Complainant/Cruz)

Respondent: 2A&A Transport (2A&A) and Alma Delia Renteria Valles (Valles), (collectively Objecting Parties)

**RELEVANT FACTUAL AND PROCEDURAL BACKGROUND**

On April 2, 2024, Plaintiff Angelo Cuba Padilla (Padilla) filed a complaint against Defendants 2A&A, Valles, and Cruz alleging one cause of action for negligence. Plaintiff's complaint arises from a multi-vehicle collision that occurred on December 3, 2022. On May 21, 2024, 2A&A and Valles filed a cross-complaint against Cruz for implied indemnity, equitable contribution, and declaratory relief. On August 28, 2025, Cruz filed his own cross-complaint against 2A&A and Valles for indemnity, declaratory relief, and apportionment of fault.

Cruz now moves for a determination that his settlement with Plaintiff was made in good faith under Code of Civil Procedure section 877.6. Cruz also seeks dismissal of the May 21, 2024 cross-complaint filed by 2A&A and Valles. 2A&A and Valles oppose. On July 8, 2026, this court continued the hearing to allow objecting parties to file a sur-reply to new evidence contained in a reply. On July 31, 2026, objecting parties filed their sur-reply.

**ANALYSIS**

If a court approves a settlement as having been made in good faith, non-settling defendants are barred from pursuing any claims for indemnification against the settling defendant. (Code Civ. Proc., § 877.6.) There is no precise yardstick for measuring "good faith" of a settlement with one of several tortfeasors; the settlement must be within the reasonable range of the settling tortfeasor's share of liability for the plaintiff's injuries, taking into consideration the facts and circumstances of the particular case. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499 (*Tech-Bilt*).)

To determine whether a settlement has been made in good faith, the court examines: a rough approximation of plaintiff's total recovery and the settlor's proportionate liability, the

amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than if found liable after a trial. (*Tech-Bilt, supra*, at p. 499.) Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud or tortious conduct aimed at injuring the interests of nonsettling defendants. (*Ibid.*)

“At a minimum, a party seeking confirmation of a settlement must explain to the court and to all other parties: who has settled with whom, the dollar amount of each settlement, if any settlement is allocated, how it is allocated between issues and/or parties, what nonmonetary consideration has been included, and how the parties to the settlement value the nonmonetary consideration.” (*Alcal Roofing & Insulation v. Sup. Ct.* (1992) 8 Cal.App.4th 1121, 1129.)

After the minimum showing, the burden of proof is on the party opposing the motion to show that the proposed settlement is not in good faith. (Code Civ. Proc., § 877.6, subd. (d); *Tech-Bilt, supra*, 38 Cal.3d at p. 499-500; *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261-1262.) The party asserting the lack of good faith must demonstrate that the settlement is so far “out of the ballpark” as to be inconsistent with the equitable objectives of the statute. (*Tech-Bilt, supra*, 38 Cal.3d at pp. 499-500.)

Cruz’s original motion states that Plaintiff alleges cervical and lumbar spine injuries, bilateral shoulder and knee injuries, and headaches, and that Plaintiff’s confirmed medical specials total \$403,245.67. Cruz expressly relied on that figure in addressing the first *Tech-Bilt* factor concerning Plaintiff’s recovery and Cruz’s proportionate liability. The moving papers therefore did provide information bearing on Plaintiff’s potential recovery.

The *Tech-Bilt* standard only requires a rough approximation rather than a precise calculation of Plaintiff’s total damages. The relevant inquiry is whether the settlement is within a reasonable range of the settling defendant’s potential proportionate liability in light of the information available at the time of settlement. (*Tech-Bilt, supra*, 38 Cal.3d at p. 499.) In the case at hand, the identified medical specials alone exceed \$400,000, so the Court can reasonably conclude that Plaintiff’s potential total recovery substantially exceeds Cruz’s \$25,000 settlement. The issue therefore becomes whether \$25,000 nevertheless falls within the reasonable range of Cruz’s potential share of liability when the remaining *Tech-Bilt* factors are considered.

The evidence supports a genuine dispute concerning Cruz’s comparative fault. It does not, however, establish that Cruz’s share was so substantial that a \$25,000 settlement necessarily falls

outside the reasonable *Tech-Bilt* range. The evidence permits a reasonable conclusion that Valles bears a substantial share of responsibility given her admitted following distance, speed, and failure to perceive the stopped vehicle until the last moment, while Cruz's exposure rests primarily on the continued presence of his disabled vehicle in the travel lane and the adequacy of the warnings he provided. 2A&A Transport and Valles' reliance on authorities concerning a disabled driver's duty to warn does not require a different result. Cruz's potential failure to provide adequate warning is appropriately considered as part of the rough approximation of his comparative fault under *Tech-Bilt*.

Cruz's insurance limits and financial condition also weigh strongly in favor of the settlement. Cruz is tendering the full \$25,000 bodily injury limit of the Commonwealth Casualty policy. (Cruz Decl. ¶ 4; Brunello Decl. ¶ 5.) He further declares that his employment is hourly and seasonal, his income is modest, he owns no real property, has no investment, retirement, or brokerage accounts, has no significant savings or secondary income, and has no umbrella, excess, or other applicable insurance. (Cruz Decl. ¶¶ 2-5.) 2A&A Transport and Valles were afforded an opportunity to respond to that evidence and submit no contrary evidence concerning Cruz's assets, income, or available coverage.

The fact that Plaintiff's potential recovery may substantially exceed \$25,000 does not, by itself, demonstrate a lack of good faith. *Tech-Bilt* requires consideration of the settlor's financial condition and available insurance in determining whether a settlement falls within the reasonable range. (*Tech-Bilt*, *supra*, 38 Cal.3d at p. 499.) The disparity between the settlement amount and Plaintiff's potential recovery is not dispositive where the settling defendant has limited insurance and little realistic ability to satisfy an excess judgment.

The remaining factors likewise do not weigh against approval. There is only one plaintiff, so allocation among multiple plaintiffs is not at issue. Cruz is paying the entirety of his available bodily injury coverage, rather than obtaining a settlement discount from those limits. There is also no evidence of collusion, fraud, or tortious conduct between Plaintiff and Cruz directed at shifting an unfair share of liability to the non-settling defendants.

As to dismissal of the cross-complaint, Cruz's original notice omitted the May 21, 2024 filing date of 2A&A Transport and Valles' cross-complaint, as required by California Rules of Court, rule 3.1382. Cruz supplied the filing date in reply, and the Court continued the hearing to afford 2A&A Transport and Valles an opportunity to respond. They identify no prejudice resulting

from the omission. Under these circumstances, the defect does not warrant denial of the requested dismissal.

**RULING**

1. Defendant/Cross-Defendant/Cross-Complainant Jose Hernandez Cruz's motion for determination of good faith settlement is GRANTED.
2. The May 21, 2024 Cross-Complaint of 2A&A Transport and Alma Delia Renteria Valles against Jose Hernandez Cruz is DISMISSED WITH PREJUDICE.
3. Movant to give Notice.